

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUPP033163: VIVIAN AGUILERA vs ALBERTSONS COMPANIES, INC., et al.

07/23/2026 in Department 43

Motion for Summary Judgment for Defendant Vons

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant The Von's Companies Motion for Summary Judgment

Tentative Ruling: The Motion for Summary Judgment of Defendant The Von's Companies is DENIED.

Defendant's motion is predicated on its identification (from security video footage) of the customer Defendant believes caused the water drops that Plaintiff allegedly slipped on. Defendant proffers video footage of a customer who, at roughly 3:05 p.m., selects flowers and (possibly) caused the drops of water on the floor leading to Plaintiff's fall which occurred approximately 45 seconds later. The screen shots attached to Plaintiff's Opposition at Ex B demonstrate there were at least four other customers starting at approximately 2:08 pm that accessed flowers near the location of the fall. (The court was able to confirm that the screen shots matched sections of Defendant's video.) Therefore, there is a triable issue of fact as to whether the Defendant's identified customer was the source of the water drops. Moreover, the clerk on duty at the time of the fall (Sonya Suarez) testified at her deposition that after each customer purchased flowers she would go clean up any water on the floor in the area with a paper towel. (Ex D to Opposition at p. 25) Assuming for the sake of argument that the customer identified by

Defendant was the source of the water drops that led to the fall, there is a triable issue of fact as to whether Defendant's hazard protocol, at least as testified to by Ms. Suarez (clean up after each customer purchased flowers), was followed by Defendant before the accident. Moreover, there remains a triable issue of fact as to the source of the water on the floor, because the Court cannot make a finding that no other floral department customer dripped water on the floor earlier.

Plaintiff's Objections to Evidence

Objections to Thomas Dec:

Sustain: 1, 3, 4, 19, 21, 22, 26-33, 38

Overrule: 2, 5, 6, 7-18, 20, 23, 24, 25, 34-37

Objections to Gunter Dec:

Sustain: 46, 47

Overrule: 39-45

Defendant's Undisputed Material Facts

Undisputed: 1, 10, 13, 14, 15, 16

Disputed but established: 3, 4, 5, 7

Not established: 2, 6, 8, 9, 11, 12, 17, 18.

Not material: 19

Plaintiff's additional material facts are moot given the court's tentative ruling. Therefore, they need not be addressed by the Court herein.